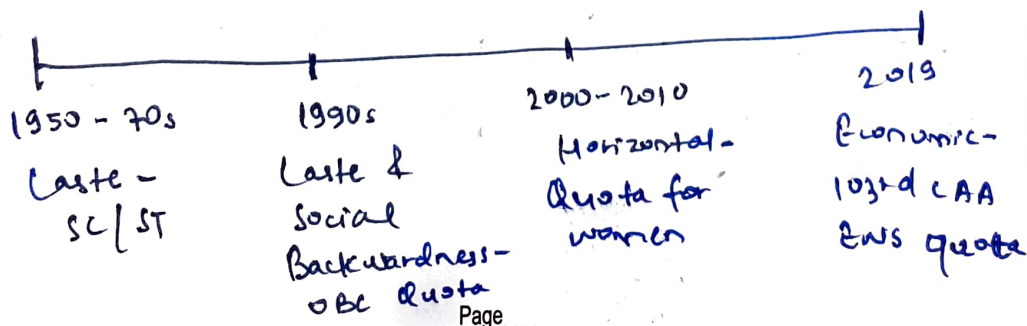


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Q- Critically analyze the shift from caste-based to multi-axis affirmative action in India with examples from recent state-level initiatives such as sub-categorisation and gender-based reservations.

Ans. Article 15 and 16 are the bedrock of affirmative action in India. India's affirmative action framework has undergone a shift from caste based model rooted in compensatory justice for SC/STs to a multi-axis approach. It now addresses class, gender, economic status and intersectionality.



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Trajectory of the shift —

① Caste-based Reservation —

↳ From 1950s - 70s focus was on SC/ST reservation based on untouchability and birth-based exclusion.

↳ Provided reservation through articles 15(4), 16(4), 330 etc

② OBC Inclusion and Social Backwardness —

↳ This period marked a shift from Caste based reservation to reservation based on social backwardness

↳ Mandal Commission used social, educational and economic indicators to identify OBCs

↳ Indira Sawhney case (1992) upheld 27% OBC quota and introduced creamy layer concept.

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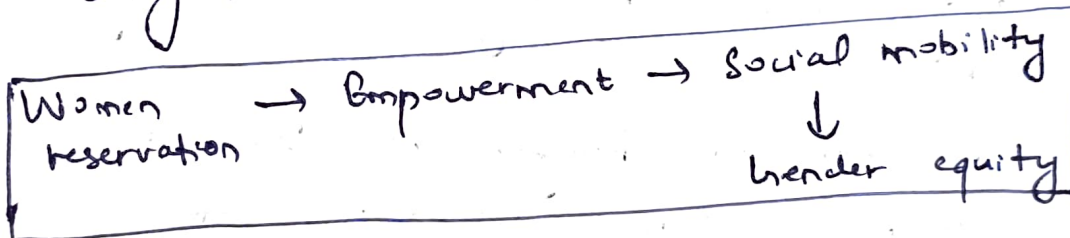
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③ Gender Based Horizontal Equity -

↳ This period saw a shift from vertical reservation to horizontal reservation.

↳ 73rd and 74th amendment (1992-93) mandated 33% reservation for women in Panchayats and Urban Local Bodies.

e.g., Bihar model ⇒ 50% women reservation in Panchayats and 35% in state jobs across all categories.



④ EWS Quota (2019) : Economic criteria -

↳ This period marked a shift towards caste-neutral reservation model

↳ 103rd amendment introduced 10% quota for EWS in general category.

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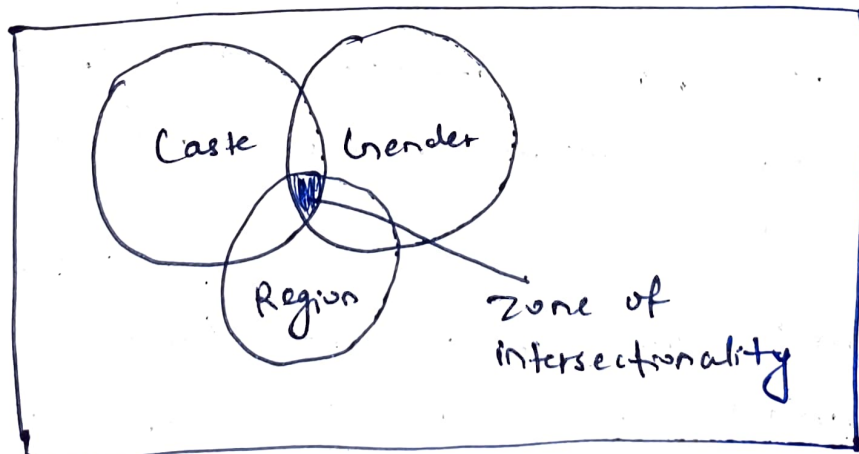
↳ It was upheld in *Janhit Abhiyan Vs Union of India* and recognised economic hardship as a valid axis of disadvantage.

⑤ Intra-Group Equity —

↳ This period marked a shift towards sub-categorisation by identifying inequalities within the group.

↳ eg. Justice Rohini Commission was tasked for subcategorisation among OBCs

• *State of Punjab Vs Davinder Singh* → sub-classification among Scheduled Castes



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Critical Analysis

Aspects	Positive outcomes	Limitations
Inclusive	From caste to class, gender, economic status	May dilute focus on historically oppressed castes
Gender empowerment	Horizontal quota provides agency to women	Token representation, Sarpanch pati phenomenon
Granular targeting	Sub-categorisation advantage the most deprived	Political backlash and resistance from dominant sub-caste
Economic justice	Advantage to economically weaker sections of unreserved category	Creates a parallel system without historical basis
Intersectionality	Recognises complex and layered discrimination	Weak implementation and Transgender Persons Act (2019) is silent on reservations

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WAY FORWARD —

① Data driven Recalibration —

Conduct a caste based census and use empirical data to provide reservation

② Creamy Layer across All Groups —

Extend creamy layer to SCs and STs to ensure intra-group equity and targeted interventions

③ Complement Reservation with Capability Enhancement —

Enhance the capability as suggested by Amartya Sen and reservation should be last mile support

④ Horizontal & Intersectional Inclusion —

Incorporate horizontal reservations within each category and acknowledge intersectionality.

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⑤ Encourage Gradual Exit —

Incentivise voluntary opt-outs from reserved categories through affirmative alternatives like tax rebates, scholarships etc.

The shift from caste-based to multi-axis affirmative action reflects India's deepening understanding of structural inequality. As new forms of exclusion emerge, affirmative action must become more data-driven, intersectional and responsive.

"Reservation is not the end, but the means to an end - that of a truly egalitarian and enlightened India."

~ BR Ambedkar